

Predatory Harassment at the Nexus of Vulnerability: A Legal Analysis of Law N° 10,487 in the Context of Irregular Migration, Data Misuse, and Transnational Crime in Costa Rica

Introduction

Framing the Hypothetical Case

This report undertakes a comprehensive legal analysis centered on a hypothetical yet critically relevant scenario: a foreign national residing in Costa Rica whose legal status is precarious due to expired or irregular immigration documentation. This individual, hereafter referred to as the subject, finds themselves the target of a sophisticated and relentless campaign of predatory harassment. The nature of this harassment transcends simple stalking; it is a systematic, multi-faceted assault designed to isolate, intimidate, and control, leveraging the subject's profound vulnerability stemming from their migratory status. The subject's fear of engaging with state authorities—a fear of detention, fines, and ultimately, deportation—is the primary tool of their tormentors.

Defining the Threat

The perpetrators in this scenario are not lone actors but sophisticated entities, potentially operating as part of a domestic or transnational organized criminal group. Their methods are

a hybrid of traditional intimidation and modern technological warfare. They engage in physical surveillance and unwanted contact, but their primary weapons are digital. The campaign involves systematic digital surveillance, the interception and weaponization of personal data, and a calculated strategy of psychological manipulation aimed at fostering isolation and scapegoating the subject. Compounding the threat is a credible suspicion of complicity, or at a minimum, willful blindness, from certain elements within local law enforcement or other state institutions. This official nexus amplifies the subject's sense of powerlessness, creating an environment where seeking help appears not only futile but perilous. The operation is designed to be difficult to trace, with potential links to international actors who operate beyond the immediate reach of Costa Rican law, further complicating any potential investigation.

The Central Legal Question

This report addresses a central legal question of significant contemporary importance: How does Costa Rica's new Predatory Harassment Law, officially **Ley N° 10.487**, in conjunction with the nation's robust frameworks for data protection, anti-corruption, and international criminal cooperation, provide a viable path to justice for a highly vulnerable individual who is simultaneously targeted by malicious actors and disenfranchised by their own legal status?

The central thesis of this analysis is that while the subject's irregular migratory status is the primary vector of their oppression, Costa Rica's progressive, rights-based legal architecture offers a powerful, if complex, set of countermeasures. The enactment of the Predatory Harassment Law in 2024 is not an isolated event but the capstone of a legislative evolution that recognizes and confronts modern, hybrid forms of criminality. This report will deconstruct these legal instruments, analyze their strategic interplay, and map a potential pathway for the subject to reclaim their security and access justice. It will argue that the very act of seeking protection under these laws can, paradoxically, become the mechanism for resolving the legal precarity that makes the subject vulnerable in the first place. This analysis will demonstrate that Costa Rican law, when interpreted and applied strategically, possesses the necessary tools to dismantle the perpetrators' campaign of terror, hold them accountable across national borders, and affirm the fundamental rights of all persons within its territory, irrespective of their migratory status.

Part I: The Legislative Framework for Protection and Prosecution

This section establishes the comprehensive legal arsenal available to the subject. It demonstrates that Costa Rica's legislative landscape has recently and deliberately evolved to address precisely the kinds of complex, multi-domain crimes outlined in the hypothetical case. The analysis will focus on four key pillars: the new Predatory Harassment Law itself, the nation's data protection regime, its anti-corruption framework, and its mechanisms for international criminal cooperation.

Section 1.1: The "Predatory Harassment Act": A Detailed Deconstruction

Legislative Genesis and Purpose

The "Law against Predatory Harassment," officially designated as **Law No. 10,487**, represents a landmark legislative achievement for Costa Rica.¹ Published in the official government newspaper,

La Gaceta, on June 11, 2024, the law entered into immediate effect, adding two new articles—193 bis and 193 ter—to the nation's foundational Penal Code (Law No. 4573 of 1970).⁵ This legislation was not developed in a vacuum. It is the product of a recognized need to address the specific and pernicious phenomenon of stalking, a behavior that was previously subsumed under more generalized and often inadequate statutes for harassment.⁷

The development of this law benefited from significant international collaboration, most notably with legal experts from Canada's Department of Justice, facilitated through Global Affairs Canada's Technical Assistance Partnership program.⁷ This collaboration highlights a conscious effort to align Costa Rican law with international best practices and to fill a common legislative gap in Latin America, where specific anti-stalking laws are rare.⁷ The explicit purpose of the law, as articulated by its proponents and legislative sponsors, is to arm victims and survivors with a new and precise legal instrument to respond to the obsessive, persistent, and often dangerous conduct that characterizes predatory harassment.⁷ It is designed to address behavior that profoundly affects a victim's intimacy, integrity, private life, and daily activities, generating fear, anxiety, and significant psychological harm.³

The Core Offense (Article 193 bis)

Article 193 bis establishes the new criminal offense of "Acoso Predatorio." A thorough analysis of its constituent elements reveals a carefully constructed definition designed to capture the multifaceted nature of modern stalking.

- **Actus Reus (The Criminal Act):** The law eschews a vague definition of harassment and instead enumerates three specific categories of prohibited conduct. A perpetrator is liable if they carry out one or more of the following:
 1. Vigile, merodeé, persiga o procure la cercanía física con la persona. (Monitors, loiters, pursues, or seeks physical proximity with the person).⁶ This clause covers the traditional, physical manifestations of stalking, such as following a person, waiting for them outside their home or workplace, and creating an unwanted physical presence in their life.
 2. Establezca o intente establecer el contacto con la víctima, por medio físico, cibernético o a través de terceras personas. (Establishes or attempts to establish contact with the victim, by physical, cybernetic, or through third parties).⁶ This is a crucial, modernizing provision. It recognizes that harassment is not limited to direct interaction and explicitly includes contact through digital means (e.g., emails, social media messages, text messages) and the use of intermediaries or proxies to communicate with or intimidate the victim.
 3. Jaquee, interfiera, intercepte o controle un dispositivo o datos personales de la persona. (Hacks, interferes with, intercepts, or controls a device or personal data of the person).⁶ This third prong is perhaps the most significant for the digital age and for the hypothetical case at hand. It directly criminalizes the technological intrusion that is a hallmark of sophisticated stalking, including unauthorized access to computers or phones, monitoring of online activity, and the theft or control of personal information.
- **Key Qualifiers:** The law imposes specific qualifiers on the conduct to distinguish it from isolated or innocuous acts. The behavior must be reiterada e insistente (repeated and insistent), establishing a required pattern of conduct.⁶ Furthermore, it must be sin consentimiento de la víctima (without the victim's consent), underscoring the unwanted and invasive nature of the actions.⁶
- **Mens Rea (The Impact):** The legal definition focuses on the tangible impact of the perpetrator's actions on the victim's life. The conduct must afecte su intimidad, integridad, vida privada o sus actividades cotidianas (affect their intimacy, integrity, private life, or daily activities).⁶ This element shifts the prosecutorial focus from proving the perpetrator's specific intent to demonstrating the real-world consequences of their campaign of harassment. It opens the door for evidence related to the victim's altered routines, their psychological state, and the disruption to their personal and professional

life.

The penalty for this offense is a prison sentence of three to eighteen months or a fine of one hundred to two hundred days.⁶ The crime is defined as a public action prosecutable at private instance, meaning that while the state can prosecute, the process is initiated by the victim's complaint.⁶

The Strategic Importance of Aggravating Circumstances (Article 193 ter)

Article 193 ter is a cornerstone of the law's strategic utility, providing a schedule of fourteen aggravating circumstances that increase the maximum penalties by one-third.⁶ These are not merely sentencing considerations; they are powerful narrative tools that allow a prosecutor to frame the full context and severity of the crime, elevating it from a simple misdemeanor to a serious, aggravated offense. For the purposes of the hypothetical case, several of these circumstances are of paramount importance:

- **(1) Vulnerability:** Cuando la víctima... se encuentre en una situación de vulnerabilidad... (When the victim... is in a situation of vulnerability).⁶ This is a direct and unambiguous hook for the subject's situation. An individual with an irregular or expired immigration status is, by definition, in a state of heightened vulnerability. Their fear of state authorities, limited access to social support systems, and susceptibility to threats of deportation place them in a legally recognized disadvantaged position that this aggravator is designed to address.
- **(7) Abuse of Profession:** Cuando la persona autora se aproveche del ejercicio de su profesión o de la función que desempeña. (When the perpetrator takes advantage of the exercise of their profession or the function they perform).⁶ This provision is critical for confronting official complicity. If any of the perpetrators are, for example, a corrupt police officer using their access to official databases, a private investigator abusing their license, or any other professional leveraging their position to facilitate the harassment, this aggravator applies directly. It transforms an act of harassment into an abuse of public or professional trust.
- **(8) Health Damage:** Cuando resulte un daño en la salud física o mental de la víctima. (When damage to the victim's physical or mental health results).⁶ Predatory harassment is a form of psychological terrorism. This aggravator provides a clear legal basis for introducing expert testimony from psychologists or psychiatrists to document the tangible harm caused by the campaign of fear and intimidation, such as anxiety, depression, post-traumatic stress disorder, or other recognized conditions.
- **(14) Organized Crime Link:** Cuando la persona autora haya cometido el hecho como un acto de venganza, represalia o cobro de deudas en crímenes organizados de narcotráfico u otros delitos conexos. (When the perpetrator has committed the act as an

act of revenge, retaliation, or debt collection in organized crimes of drug trafficking or other related offenses).⁶ This is arguably the most powerful provision for the hypothetical case. It explicitly connects the act of predatory harassment to the world of organized crime. By invoking this aggravator, a prosecutor can argue that the stalking is not an isolated interpersonal conflict but a tactic of a criminal enterprise. This fundamentally changes the nature of the case, likely triggering investigation by specialized units for organized crime and justifying more significant prosecutorial resources and international cooperation.

The precision of these enumerated acts and aggravating circumstances transforms the Predatory Harassment Law from a general prohibition into a surgical instrument. The law's drafters clearly anticipated the convergence of physical intimidation, technological intrusion, and organized criminal motives. By criminalizing the specific *methods* (e.g., hacking) and recognizing the sophisticated *motives* (e.g., organized crime reprisal), the law provides a prosecutor with the exact legal architecture needed to frame the case in its full severity, moving it beyond a simple interpersonal dispute into the realm of serious, organized criminality that threatens not just the individual, but the rule of law itself.

Section 1.2: The Digital Sphere: Interplay with Data Protection under Law No. 8968

The actions of the perpetrators in the hypothetical scenario create a situation of dual illegality, triggering liability not only under the new criminal statute for predatory harassment but also under Costa Rica's established data protection regime. The cornerstone of this regime is the **Ley de Protección de la Persona frente al tratamiento de sus datos personales (Law No. 8968)**, enacted in 2011.¹¹ This law and the Penal Code work in tandem, creating a multi-layered legal shield against the digital aspects of the harassment campaign.

Dual Illegality: Harassment and Data Violation

The act of Jaquar, interferir, interceptar o controlar un dispositivo o datos personales de la persona (hacking, interfering with, intercepting, or controlling a device or personal data), as criminalized by Article 193 bis of the Predatory Harassment Law, is simultaneously a flagrant violation of Law No. 8968.⁶ The central tenet of Law No. 8968 is the principle of "autodeterminación informativa" (informational self-determination), which grants individuals the right to control their personal information.¹² The law unequivocally prohibits the collection,

storage, or processing of personal data without the prior, express, and informed consent (consentimiento informado) of the data subject.¹¹ Any unauthorized access to the subject's devices or data is, therefore, illegal on its face under this data protection framework.

Violations under Law 8968

The perpetrators' digital surveillance and data interception would constitute multiple, distinct offenses under Law No. 8968 and related statutes:

- **Grave Faults (Article 30, Law 8968):** The act of collecting, storing, or using personal data without the express and informed consent of the subject is classified as a "falta grave" (grave fault).¹² This applies to any information obtained through hacking or unauthorized surveillance.
- **Gravest Faults (Article 31, Law 8968):** If the intercepted data includes "datos sensibles" (sensitive data)—defined as information related to racial origin, political opinions, religious convictions, health, or sexual orientation—the violation is elevated to a "falta gravísima" (gravest fault), carrying the most severe administrative penalties.¹²
- **Criminal Offenses (Penal Code):** The Penal Code complements these administrative faults with specific criminal offenses. Article 230 of the Penal Code criminalizes Suplantación de identidad (Identity Theft), sanctioning anyone who supplants the identity of a person on a social network, website, or other electronic medium.¹⁴ This is a highly relevant charge, as perpetrators of digital harassment often use stolen data to impersonate their victims, create false profiles, or spread disinformation to isolate them from their support networks.

Enforcement and Remedies: A Two-Track Strategy

This dual illegality creates a powerful, two-track strategic approach for the subject. They are not limited to a single legal avenue.

1. **Criminal Complaint:** The subject can file a criminal complaint for Predatory Harassment under Law N° 10.487, where the data interception serves as a core element of the *actus reus* and a potential basis for aggravated charges.
2. **Administrative Complaint:** Concurrently, the subject can file an administrative complaint with the **Agencia de Protección de Datos de los Habitantes (PRODHAB)**, the national data protection authority.¹⁵ PRODHAB is empowered to investigate violations of Law 8968 and has significant enforcement powers, including the authority to impose

heavy fines (ranging from 5 to 30 base salaries) and, in serious cases, to order the suspension or closure of the databases used to commit the violations.¹⁵

This multi-pronged strategy is far more effective than a single criminal charge. The criminal process addresses the immediate threat to personal safety, while the administrative process at PRODHAB can work to disrupt the technological infrastructure of the harassment campaign by targeting the illicit databases and data flows.

International Scope and Jurisdiction

A critical feature of Costa Rica's data protection law is its extraterritorial reach. Law 8968 explicitly applies to "international entities handling local data".¹⁵ This provision is vital in the context of the hypothetical case, where the perpetrators may be operating from outside Costa Rica. It provides a clear jurisdictional basis for PRODHAB to investigate and potentially sanction foreign-based companies or individuals who are processing the subject's personal data without consent. This allows the legal battle to extend beyond Costa Rica's borders, pursuing the technological and financial enablers of the harassment campaign wherever they may be located. The law's alignment with GDPR principles, as contemplated in pending legislative reforms, further strengthens its international applicability.¹⁶

The synergy between the new criminal law and the existing data protection framework is profound. A single act by a perpetrator—such as a corrupt official accessing a government database to provide the subject's address to the harassers—is simultaneously a component of the criminal conspiracy of predatory harassment, an act of corruption, and a grave violation of data protection law. This convergence allows the subject's legal team to apply pressure on multiple fronts, creating a comprehensive legal response that mirrors the multi-domain nature of the threat itself.

Section 1.3: State Integrity and Official Complicity

A central and deeply intimidating element of the hypothetical scenario is the potential involvement of corrupt state officials, particularly within law enforcement. Such complicity transforms a private threat into a state-sanctioned persecution, making the victim feel as though the very institutions meant to protect them are part of the conspiracy against them. Fortunately, Costa Rica's legal system possesses a robust and recently fortified framework for combating public corruption, providing specific tools to investigate, prosecute, and neutralize

official misconduct.

The Anti-Corruption Framework

Costa Rica has a well-established legal and institutional framework designed to ensure probity in public service and to punish corruption. The primary statute is **Law No. 8422, the "Ley contra la Corrupción y el Enriquecimiento Ilícito en la Función Pública"** (Law against Corruption and Illicit Enrichment in Public Service).¹⁹ This law establishes a "deber de probidad" (duty of probity), obligating every public official to act with rectitude, good faith, and impartiality, oriented toward the public interest.²⁰

The Penal Code reinforces this with severe penalties for crimes against the duties of public office, including bribery (cohecho), embezzlement (peculado), and abuse of authority.²¹ The acceptance of a bribe by a public official can lead to a prison sentence of up to ten years.²¹ The legal framework is comprehensive, extending to transnational bribery and prohibiting both the offering and the acceptance of bribes.¹⁹ Any complicity by a police officer or other public official in the harassment campaign—whether through actively providing information, deliberately failing to act on a complaint, or intimidating the subject—would constitute a distinct and serious crime under this framework.

The 2024 Whistleblower Protection Law: A Critical New Shield

A pivotal development in this area is the enactment of the **"Ley para la protección de las personas denunciantes y testigos de actos de corrupción contra represalias laborales"** (Law for the protection of complainants and witnesses of acts of corruption against retaliation in employment), which took effect on February 8, 2024.²³ While its title suggests a focus on employment, its protections are broad and strategically vital for the subject of the hypothetical case.

The law is designed to protect anyone who reports or witnesses an act of corruption from retaliation. Crucially, "retaliation" is defined expansively to include not only unfavorable changes to employment conditions but also **"Threats, intimidation, and harassment"**.²³ This provision creates a legal shield for the subject. If they report the involvement of a corrupt official in their harassment, any subsequent escalation of that harassment or any punitive action taken against them (such as initiating deportation proceedings) could be legally framed as an act of illegal retaliation under this new law.

This law can be interpreted creatively to provide a powerful defense. The victim's greatest fear is that reporting the crime will lead to their deportation. If the victim formally reports a corrupt police officer's involvement, and that officer or their associates then use the state's immigration apparatus to target the victim, a compelling legal argument can be made that this constitutes a retaliatory act designed to silence a witness to corruption. This could provide the basis for an injunction against any deportation action, effectively turning a law designed to protect public servants into a protective shield for a vulnerable non-citizen who dares to expose official misconduct.

Reporting Mechanisms and Institutional Oversight

Costa Rica provides several formal channels for reporting corruption, allowing a complainant to bypass potentially compromised local authorities.

- **Procuraduría de la Ética Pública (PEP):** The Public Ethics Prosecutor's Office is a specialized body within the Attorney General's Office responsible for investigating and prosecuting administrative complaints of corruption and violations of the duty of probity.²⁴ It provides a formal, high-level venue for reporting a corrupt official's actions. The PEP guarantees the confidentiality of a good-faith complainant's identity.²⁴
- **Organismo de Investigación Judicial (OIJ) - Oficina de Asuntos Internos:** The OIJ, Costa Rica's main investigative police force, maintains an Office of Internal Affairs responsible for handling disciplinary and criminal complaints against its own personnel.²⁵ This provides a direct channel to report misconduct by an OIJ officer. The OIJ also operates a confidential hotline (800-8000-645) for reporting information.²⁶
- **Contraloría General de la República (CGR):** While its primary focus is on the misuse of public funds, the CGR is another key anti-corruption body that can receive complaints regarding financial irregularities that may be linked to broader corrupt schemes.²⁴

While public perception data from the World Justice Project indicates that only 42% of Costa Ricans believe police are held accountable for violating laws, highlighting a significant trust deficit, the existence of these formal, independent oversight mechanisms is crucial.²⁷ For the subject, they represent a pathway to justice that does not rely on the integrity of the specific officers who may be complicit in their harassment. By documenting and formally reporting the corruption to these higher-level bodies, the subject can trigger an internal investigation that neutralizes the threat from within the state apparatus.

Section 1.4: Beyond National Borders: Universal Jurisdiction and

International Cooperation

The transnational nature of the threat in the hypothetical scenario—with potential masterminds or technological infrastructure located abroad—necessitates a legal strategy that can transcend national borders. Costa Rica's legal framework is exceptionally well-equipped for this challenge, boasting an expansive concept of universal jurisdiction and a deep commitment to international cooperation, codified in its domestic law and through its ratification of key international treaties.

Expansive Universal Jurisdiction

Historically, Costa Rican law was restrictive, with the 1973 Penal Code prohibiting the prosecution of offenses committed outside its territory.²⁸ However, through a series of progressive amendments, particularly since 2001, Costa Rica has dramatically expanded the scope of its universal jurisdiction. Article 7 of the Penal Code now empowers Costa Rican courts to prosecute a wide array of serious crimes regardless of where the act was committed or the nationality of the perpetrator.²⁸

Initially focused on crimes like piracy, genocide, and human trafficking, the scope was broadened in 2019 by Act No. 9699 to include a comprehensive list of offenses related to corruption and organized crime. This includes transnational bribery, influence peddling, illicit enrichment, and money laundering.²⁸ This legal evolution is of immense strategic importance. It provides a solid domestic legal basis for Costa Rican prosecutors to file charges against the foreign actors involved in the harassment campaign, even if those individuals never set foot in Costa Rica. The harassment, especially when linked to an organized criminal group and involving data crimes, falls squarely within the types of transnational offenses that this expanded jurisdiction is designed to combat.

International Treaties and Cooperation Mechanisms

Costa Rica's domestic law is powerfully reinforced by its participation in a web of international treaties that facilitate cross-border investigation and prosecution. Article 7 of the Constitution gives duly ratified international treaties authority superior to domestic laws, ensuring their robust application by the courts.²⁸

- **United Nations Convention against Transnational Organized Crime (Palermo**

Convention): As a party to the Palermo Convention, Costa Rica is obligated to cooperate extensively with other signatory nations in the fight against organized crime.²⁸ This treaty provides a formal framework for mutual legal assistance (MLA), enabling prosecutors to request evidence, seek the freezing of assets, and coordinate investigative strategies with their foreign counterparts.

- **Budapest Convention on Cybercrime:** Costa Rica's accession to the Budapest Convention is a critical asset in this case.²⁹ This is the primary international instrument for cooperation in fighting cybercrime. It establishes standardized procedures for preserving and obtaining electronic evidence across borders. Crucially, it created a 24/7 network of contact points, allowing for rapid police-to-police cooperation to trace IP addresses, identify users of online services, and secure digital evidence before it can be deleted.³⁰ For the subject, this means that a Costa Rican investigator can quickly request assistance from law enforcement in the country where the perpetrators' servers or digital command centers are located.
- **Bilateral Treaties:** Costa Rica maintains a robust network of bilateral treaties, including a long-standing extradition treaty with the United States, signed in 1982³¹, and consular conventions that facilitate legal processes.³² These agreements provide the final-stage mechanism for bringing foreign-based perpetrators to justice. Once Costa Rican prosecutors have built a case using evidence gathered through MLA and the Budapest Convention, they can issue an international arrest warrant (such as an INTERPOL Red Notice) and formally request the extradition of the individuals to face trial in Costa Rica.³³

This comprehensive framework for international cooperation ensures that the perpetrators cannot simply hide behind national borders. The combination of expansive universal jurisdiction and practical, treaty-based mechanisms for evidence sharing and extradition gives Costa Rican authorities the legal and procedural tools necessary to dismantle the entire criminal network, both its domestic and international components.

Part II: The Subject's Vulnerability and Rights

This section delves into the central tension of the hypothetical case: the profound legal precarity created by the subject's irregular immigration status, juxtaposed against the robust constitutional and statutory guarantees of fundamental rights afforded to all individuals in Costa Rica. Understanding this dichotomy is essential to grasping both the nature of the threat and the potential pathways to justice.

Section 2.1: The Precariousness of Irregular Status

The vulnerability of the subject is not merely a psychological state; it is a legally defined condition with severe and tangible consequences under Costa Rican immigration law. An individual falls into what is termed an "irregular situation" primarily through two common pathways: overstaying an authorized tourist visa, which for many nationalities is typically valid for 90 days, or failing to renew a formal residency card (known as a DIMEX) within the prescribed timeframes.³⁴

Legal and Financial Consequences

The legal framework surrounding immigration enforcement is designed to be punitive, creating a strong deterrent against non-compliance. This punitive structure is precisely what the malicious actors in the scenario exploit.

- **Financial Penalties:** Under Immigration Law No. 8764, a foreigner who remains in the country with an expired tourist visa is subject to a fine of \$100 for each month they are in an "irregular situation".³⁶ Similarly, failing to renew a DIMEX residency card on time incurs a monthly fine, typically equivalent to \$3 per month of delay.³⁵ These fines can accumulate into significant debts, creating a financial barrier to regularization.
- **Prohibitions on Re-entry:** The consequences extend beyond financial penalties. A foreigner who overstays their visa and fails to pay the accumulated fines can be barred from re-entering Costa Rica for a period equivalent to three times the length of their irregular stay.³⁶ This is a severe sanction that can separate individuals from their lives, work, and families established within the country.
- **Cancellation of Migratory Status:** Perhaps the most dire consequence applies to those with formal residency. A foreign national holding a Temporary Residency or a Special Category DIMEX who fails to renew their document within three months of its expiration will have their entire migratory category *canceled*.³⁵ This is not a simple late renewal; it means their legal status is nullified, and they are forced to begin the entire, often arduous and expensive, application process from scratch. This provision effectively pushes individuals from a state of being "late on renewal" to being fully "undocumented."

The Weaponization of Precarity

This legal architecture of precarity is the core vulnerability that the perpetrators weaponize. Their entire strategy of isolation and intimidation is predicated on the correct assumption that

the subject will be terrified to approach any state authority. The subject is trapped in a state of constant fear: fear of the harassers, and an equal, if not greater, fear of the state itself. Any interaction with a police officer, a court official, or any government agency carries the imminent risk of their irregular status being discovered, which could trigger the immediate and severe consequences of fines, detention, an entry ban, and the complete loss of their legal status in the country. This fear paralyzes the subject, rendering them a seemingly perfect victim who cannot or will not seek help.

Section 2.2: The Constitutional Guarantee of Access to Justice

In stark contrast to the punitive nature of its immigration enforcement regime, Costa Rica's constitutional and legal framework provides one of the region's most robust guarantees of access to justice for all individuals, regardless of their nationality or migratory status. This principle creates the central legal paradox of the case and offers the primary pathway to a solution.

Constitutional and Statutory Foundations

The right to seek justice is not a privilege for citizens but a fundamental human right enshrined at the highest levels of Costa Rican law.

- **Constitutional Mandate:** Article 41 of the Political Constitution of Costa Rica is unequivocal: "Ocurriendo a las leyes, todos han de encontrar reparación para las injurias o daños que hayan recibido en su persona, propiedad o intereses morales. Debe hacerseles justicia pronta, cumplida, sin denegación y en estricta conformidad con las leyes." (By recourse to the laws, all must find reparation for the injuries or damages they have received in their person, property or moral interests. Justice must be made prompt, fulfilled, without denial and in strict conformity with the laws).³⁷ The use of the word "todos" (all) is critical, as it establishes a universal right.
- **Explicit Extension to Foreign Nationals:** This universal right is explicitly extended to non-citizens in multiple statutes. Article 19 of the Constitution states that foreigners have the same individual and social rights and duties as Costa Ricans, with limited exceptions.³⁷ More specifically, the **Ley General de Migración y Extranjería (Law No. 8764)**, the very law that defines the subject's precarity, also contains their shield. Article 31 of this law affirms that foreign persons enjoy the same individual rights and guarantees as Costa Ricans.³⁸ The law goes further, stating in Article 33 that "Toda persona extranjera tendrá derecho de acceso a la

justicia, al respeto de las garantías del debido proceso..." (Every foreign person shall have the right of access to justice, to respect for the guarantees of due process...).³⁷

Irrespective of Migratory Status

The Costa Rican Judiciary (Poder Judicial) has consistently reinforced that this right is not contingent on legal status. Through its "Institutional Policy for the Access to Justice of Migrant and Refugee Persons" and various judicial circulars and directives, it has established a clear doctrine that access to the courts must be guaranteed for everyone, "con documentos o sin documentos" (with or without documents).³⁷ Legal analyses and judicial practice have confirmed that a valid identification document is not an essential prerequisite for filing a criminal complaint or a labor lawsuit; other means can be used to establish identity during the process.³⁸ This means that,

de jure, the subject's expired documents cannot be used as a legal barrier to prevent them from reporting the crime of predatory harassment.

Provisional Stay for Judicial Processes: The Key to Unlocking Justice

The legal framework provides a specific and powerful procedural tool to resolve the subject's central dilemma. **Article 72 of the Ley General de Migración y Extranjería** establishes that, upon the order of a judge or administrative tribunal, the General Directorate of Immigration shall grant a provisional authorization of stay (autorización de permanencia migratoria provisional) to a foreign person who must appear in a legal process.³⁸

This provision is not merely a procedural convenience; it is a transformative legal mechanism. It provides a direct pathway to temporarily regularize the subject's status for the express purpose and duration of the legal proceedings. By filing a credible criminal complaint, the subject's legal representative can immediately petition the presiding judge to issue an order under Article 72. This order would compel the immigration authorities to grant a provisional permit, thereby neutralizing the threat of deportation and removing the primary source of fear that the perpetrators are exploiting. The very act of seeking justice becomes the mechanism for resolving the vulnerability that enables the crime, effectively breaking the catch-22 in which the subject is trapped. This provision demonstrates that the Costa Rican state, in its judicial capacity, prioritizes the right to seek justice over the immediate enforcement of immigration infractions when the two come into conflict.

Section 2.3: The Chilling Effect: De Facto Barriers to Reporting

Despite the robust *de jure* legal protections guaranteeing access to justice, a significant gap exists between the law on the books and the lived reality of a vulnerable individual in an irregular migratory situation. This gap is created by a series of powerful *de facto* barriers that produce a profound "chilling effect," discouraging victims from coming forward.

Fear of Deportation and Sanctions

The primary and most potent barrier is the subject's rational and well-founded fear that any contact with a state official will trigger immigration enforcement.³⁷ Even with knowledge of their right to access justice, the perceived risk of deportation is often too high. The subject may believe, rightly or wrongly, that a low-level police officer or administrative clerk will prioritize reporting their irregular status over processing their criminal complaint. This fear is the central pillar of the perpetrators' strategy of control.

Distrust in Authorities

This fear is significantly compounded by a pervasive distrust in authorities, particularly law enforcement. This is not a problem unique to migrants, but it is acutely felt by them. The World Justice Project's 2022 data for Costa Rica reveals a critical perception gap: while 76% of respondents felt that police treat people with respect, only 42% believed that police are held accountable for violating laws.²⁷ This suggests a public belief that while officers may be polite, the system lacks effective oversight. For a vulnerable migrant, especially one who suspects official complicity in their harassment, this statistic is damning. It reinforces the belief that complaining is not only useless but could also be dangerous, as the system may protect its own rather than a non-citizen with an irregular status. Freedom House reports note that while anti-corruption laws are generally well-enforced, confirmed cases of police abuse are only "generally investigated and prosecuted," and recurrent abuse by prison police has not been thoroughly investigated due to victims' reluctance to file formal complaints, indicating systemic weaknesses.⁴⁰

Systemic and Language Barriers

Beyond fear and distrust, practical barriers can be formidable. The Costa Rican legal system, like any other, is complex and can be intimidating to navigate for anyone, let alone a foreign national who may not be fluent in Spanish or familiar with the procedures.³⁹ Accessing legal aid, understanding the steps to file a complaint, and communicating effectively with court officials and police can be significant hurdles. The Judiciary's own policies recognize the need to provide interpreters and ensure communication is in a language the person understands, but the availability and quality of these services can be inconsistent in practice.³⁹

Risk of Re-victimization

Finally, the process of reporting a crime, especially one as intimate and psychologically damaging as predatory harassment, is inherently traumatic. The victim must recount distressing events to strangers, submit to questioning, and face their perpetrators in a legal setting. This process can lead to re-victimization, where the justice system itself inflicts further psychological harm.⁴¹ A victim in an irregular migratory situation may fear being disbelieved, judged, or blamed for their circumstances. They may worry that their lack of legal status will be used to undermine their credibility as a witness, turning their quest for justice into another source of trauma and humiliation. These de facto barriers collectively create a formidable wall of silence, which a successful legal strategy must carefully and systematically dismantle.

Part III: The Malicious Actor: A Multi-Pronged Strategy of Attack

The perpetrators in this hypothetical scenario employ a sophisticated, hybrid threat model that combines technological intrusion, psychological manipulation, and the exploitation of systemic state weaknesses. Their strategy is not merely to harass but to dismantle the subject's life, ensuring they are too isolated and terrified to fight back. This section will deconstruct the perpetrators' methods, linking them back to the specific legal prohibitions and vulnerabilities discussed in the preceding parts.

Section 3.1: Weaponizing Data and Technology

The digital realm is the primary battleground for the perpetrators. They leverage technology to create a panopticon of surveillance around the subject, eroding their sense of privacy and safety.

- **Digital Stalking and Surveillance:** The actors use a variety of cybernetic means to monitor the subject and establish unwanted contact. This is a direct violation of Law N° 10.487, Article 193 bis.2, which explicitly criminalizes establishing or attempting to establish contact via cybernetic means.⁶ This could include a relentless barrage of messages through encrypted apps, emails from anonymous accounts, or comments on social media designed to show the subject they are being watched at all times.
- **Data Interception and Misuse:** The core of their technological assault is the act of hacking, interfering with, or controlling the subject's personal devices and data, a specific crime under Article 193 bis.3 of the new law.⁶ This goes far beyond simple communication. By gaining access to the subject's email, cloud storage, or social media accounts, the perpetrators can harvest a wealth of personal information. This data is then weaponized. It can be used for blackmail (threatening to release private photos or conversations), for psychological manipulation (using intimate knowledge of the subject's life to craft more disturbing threats), or to create a false narrative that can be used to scapegoat the subject or discredit them to their friends, family, or employers. This conduct also represents a grave violation of Law No. 8968, which mandates consent for any data processing.¹²
- **Identity Theft and Disinformation Campaigns:** With access to the subject's personal data, the perpetrators can engage in Suplantación de identidad (Identity Theft), a crime under Article 230 of the Penal Code.¹⁴ They could create fake social media profiles in the subject's name to post damaging content, send malicious messages to the subject's contacts to sever their support network, or even plant false evidence on their devices to incriminate them in other activities. This strategy of isolation is key; by cutting the subject off from their support system, the perpetrators amplify their vulnerability and sense of hopelessness.

Section 3.2: Exploiting Systemic Weaknesses

The perpetrators' strategy is not confined to the digital sphere. They actively exploit real-world systemic weaknesses, particularly the potential for corruption within state

institutions, to solidify their control over the subject.

- **Leveraging Police Corruption:** The actors' potential connections within law enforcement are a force multiplier for their campaign of terror. This complicity can manifest in several ways:
 - **Willful Inaction:** A common and difficult-to-prove form of corruption is simply ensuring that the subject's complaints go nowhere. Bribed or influenced officers might repeatedly dismiss the subject's reports as trivial, a domestic dispute, or unfounded, creating a record of "non-cooperation" that can later be used against the subject.
 - **Active Complicity:** More overtly, corrupt officials can become active participants in the harassment. They might use their privileged access to official government databases (e.g., immigration, vehicle registration, police records) to provide the perpetrators with real-time information on the subject's location, new address, or legal status. They could also engage in direct intimidation, such as conducting unwarranted "inspections" or traffic stops to remind the subject of their power.
 - **Weaponizing Immigration Status:** The most potent threat a corrupt officer can wield is the explicit or implicit promise to report the subject to the General Directorate of Immigration and Foreigners. This threat leverages the full punitive power of the state's immigration enforcement apparatus as a tool of coercion, making it clear to the subject that the police are not a source of help, but an extension of the threat itself.
- **The Perception Gap:** The malicious actors rely on and reinforce the public's low confidence in police accountability.²⁷ They know that the subject is likely to believe that the system is corrupt and that seeking help is futile. By demonstrating their influence over local law enforcement, they create a powerful psychological effect, convincing the subject that they are untouchable and that no one can or will help. This manufactured sense of hopelessness is a key objective of their campaign.

Section 3.3: Transnational Operations and Jurisdictional Evasion

To further complicate investigation and insulate themselves from accountability, the perpetrators structure their operation with a transnational dimension.

- **Operating from Abroad:** It is highly probable that the masterminds or key technical operatives of the harassment campaign are located outside of Costa Rica. They can use virtual private networks (VPNs), offshore servers, and encrypted communication platforms to direct the campaign remotely, making it difficult for Costa Rican law enforcement to identify them through conventional means. This is a classic tactic designed to exploit jurisdictional boundaries and slow down investigations.
- **Use of Proxies and Third Parties:** The law explicitly anticipates and criminalizes

harassment conducted a través de terceras personas (through third parties).⁶ The international actors can hire local individuals in Costa Rica to carry out the physical aspects of the harassment—such as physical surveillance, delivering threats, or vandalism—while the core command and control remains abroad. These local proxies may be unwitting accomplices or low-level criminals, further obscuring the chain of command and protecting the architects of the campaign.

- **Complex Financial Flows:** A transnational operation of this nature requires funding. The payments to local proxies and for technological infrastructure would likely be routed through complex international financial channels, possibly involving cryptocurrencies or shell companies, to launder the funds and hide their origin. This financial dimension links the specific act of harassment to broader concerns of international money laundering and organized crime, providing another avenue for investigation if those trails can be uncovered.⁴²

The perpetrators' strategy is a textbook example of a hybrid threat. It is not just "stalking" or "hacking"; it is a coordinated campaign that blends sophisticated cyber techniques with traditional physical intimidation and the cynical exploitation of state-level corruption. Their strength lies in operating in the seams between these different domains, hoping that no single law enforcement or judicial body can see the entire picture. However, this complexity is also a strategic weakness. By operating across so many domains, they expose themselves to liability under a wider and more powerful range of Costa Rican and international laws, from the new Predatory Harassment Law to statutes against corruption, money laundering, and transnational organized crime.

Part IV: Application and Strategic Interpretation in the Hypothetical Case

This section synthesizes the preceding analysis into a coherent and actionable legal strategy for the hypothetical subject. It moves from a theoretical examination of the law to a practical blueprint for its application, outlining the steps necessary to construct a compelling criminal complaint, counter official obstruction, and pursue justice across international borders.

Section 4.1: Constructing the Criminal Complaint

The foundation of the legal response is a meticulously crafted criminal complaint that not only details the perpetrators' actions but also frames them within the most serious possible

interpretation of the law.

- **Primary Charge: Acoso Predatorio (Article 193 bis):** The complaint must begin with a clear and detailed enumeration of the acts constituting predatory harassment. This is not a general narrative of feeling unsafe; it is a specific accounting of each instance of illegal conduct, linked to evidence. The complaint would systematically list:
 - Every documented instance of physical surveillance, loitering, or pursuit (Art. 193 bis.1), supported by dates, times, locations, photographs, vehicle license plates, and witness testimony if available.
 - Every unwanted contact via cybernetic means (Art. 193 bis.2), supported by screenshots of messages, email headers, social media interactions, and call logs.
 - All evidence of data interception or device control (Art. 193 bis.3), supported by reports from cybersecurity experts, evidence of unauthorized logins, or forensic analysis of the subject's devices.
- **Invoking Aggravating Circumstances (Article 193 ter):** The strategic core of the complaint lies in pleading multiple aggravating circumstances to build a compelling narrative of a severe, complex crime. The legal strategy would be to argue for the application of at least four key aggravators:
 1. **Vulnerability (#1):** The complaint will explicitly state that the subject's irregular migratory status places them in a situation of legally recognized vulnerabilidad, making the crime more severe because the perpetrators chose a target they believed could not seek help.⁶
 2. **Damage to Mental Health (#8):** The complaint will be accompanied by a preliminary report from a qualified psychologist or psychiatrist, diagnosing the subject with conditions such as anxiety, depression, or PTSD resulting directly from the harassment campaign. This formally introduces the daño en la salud... mental into the legal record from the outset.⁶
 3. **Abuse of Profession (#7):** If there is any evidence, even circumstantial, of official complicity (e.g., the perpetrators having knowledge of information only available in official records), the complaint will allege the aproveche del ejercicio de su profesión aggravator, formally putting the prosecution on notice of potential state involvement.⁶
 4. **Reprisal by an Organized Criminal Group (#14):** This is the most critical element. The complaint will frame the entire campaign of harassment not as random stalking, but as a calculated acto de venganza, represalia connected to crímenes organizados.⁶ This framing is designed to elevate the case beyond the purview of a local precinct and trigger an investigation by specialized prosecutors who handle organized crime.
- **Secondary Charges:** Depending on the specific facts, the complaint could also include charges for Suplantación de identidad under Article 230 of the Penal Code if the perpetrators have impersonated the subject online¹⁴, and reference the concurrent violations of Law No. 8968 to highlight the gravity of the data crimes involved.

This comprehensive approach ensures the case is not misinterpreted as a minor offense. It

presents the judiciary with a narrative of a serious, aggravated, and potentially transnational crime from the very beginning.

Section 4.2: Navigating and Countering Official Obstruction

The subject's greatest immediate challenge is overcoming the dual threat of the perpetrators and a potentially unresponsive or hostile state apparatus. The legal strategy must therefore include immediate protective and preemptive measures.

- **Immediate Protective Measures and the Provisional Stay:** The first and most critical action upon filing the criminal complaint is to petition the criminal court judge for a suite of protective measures. This includes standard restraining orders against the known local perpetrators. However, the paramount request is for the judge to issue an immediate order under **Article 72 of the Ley General de Migración y Extranjería**.³⁸ This order compels the immigration authorities to grant the subject a **provisional stay permit** for the duration of the judicial proceedings. This single legal maneuver is the linchpin of the entire strategy. It instantly neutralizes the threat of deportation, removes the primary tool of coercion used by the perpetrators, and transforms the subject from a vulnerable individual in an irregular situation into a legally protected witness and victim participating in the justice system.
- **Formal Reporting of Corruption:** If local police are unresponsive, dismissive, or actively complicit, the strategy shifts to a higher level of oversight. A formal, documented complaint must be filed with both the **OIJ's Oficina de Asuntos Internos** and the **Procuraduría de la Ética Pública (PEP)**.²⁴ This complaint will not be a general grievance but a specific allegation of official misconduct, citing violations of the duty of probity under Law No. 8422 and potentially criminal obstruction of justice.²⁰ Creating this official, high-level paper trail makes it much more difficult for the misconduct to be ignored.
- **Leveraging the Whistleblower Law as a Defensive Shield:** Any punitive action taken against the subject *after* they have filed a complaint alleging official corruption can be countered by invoking the 2024 Whistleblower Protection Law.²³ If, for example, an implicated official prompts an immigration investigation or the issuance of a deportation order, the subject's lawyer would immediately file for an injunction. The legal argument would be that this action is not a standard administrative procedure but an illegal act of **retaliation**—specifically "intimidation" and "harassment"—as defined by the new law, intended to silence a witness to corruption. This defensive use of the Whistleblower Law provides a crucial second layer of protection against the weaponization of the subject's immigration status.

Section 4.3: Pursuing International Perpetrators

With the subject's immediate safety and legal status secured, the strategy expands to dismantle the transnational elements of the criminal operation. The prosecutor, armed with a complaint that credibly alleges transnational organized crime and cybercrime, has the legal mandate to activate international cooperation channels.

- **Initiating International Cooperation via the Budapest Convention:** The first step in the international investigation would be to leverage the **Budapest Convention on Cybercrime**. The Costa Rican prosecutor or OIJ investigator would use the established 24/7 network of contact points to send an urgent request to their counterparts in the jurisdiction(s) where the foreign perpetrators or their digital infrastructure are located.³⁰ This request would seek the expedited preservation of volatile digital evidence, such as server logs, social media account data, IP address records, and cryptocurrency transaction histories. This rapid police-to-police cooperation is essential to secure evidence before it can be destroyed.
- **Formal Mutual Legal Assistance Treaty (MLAT) Requests:** Following the initial preservation request, the prosecutor would submit a formal MLAT request. This request, likely made under the auspices of the **UN Convention against Transnational Organized Crime (Palermo Convention)** or a relevant bilateral treaty, would seek a broader range of evidence.²⁸ This could include business records, banking information, and the deposition of foreign witnesses. This is a more formal, court-supervised process that allows for the gathering of evidence that is admissible in a Costa Rican court.
- **Extradition Proceedings:** Once sufficient evidence has been gathered from both domestic and international sources to formally charge the foreign perpetrators, the final step is to seek their extradition. Costa Rican authorities would request that INTERPOL issue a Red Notice for the individuals, flagging them for arrest worldwide.³³ Concurrently, a formal extradition request would be transmitted through diplomatic channels, based on Costa Rica's existing treaties, such as the extradition treaty with the United States.³¹ This provides the mechanism to bring the architects of the harassment campaign physically before a Costa Rican court to face justice.

This comprehensive, multi-stage strategy demonstrates that while the challenges are significant, the legal tools available in Costa Rica are sophisticated and powerful enough to mount a formidable response, protecting the victim while systematically dismantling the criminal operation at both the local and international levels.

Table 1: Prohibited Acts and Strategic Application of Aggravating Circumstances under Ley N° 10.487

Article	Prohibited Act / Aggravating Circumstance (Verbatim from Law) ⁶	English Translation	Evidentiary Requirements	Strategic Application in Hypothetical Case
193 bis.1	Vigile, merodeé, persiga o procure la cercanía física con la persona.	Monitors, loiters, pursues, or seeks physical proximity with the person.	Witness testimony, GPS tracking data, security camera footage, logs of repeated presence near home/work.	Establishes the physical component of the harassment campaign, demonstrating a pattern of real-world intimidation.
193 bis.2	Establezca o intente establecer el contacto con la víctima, por medio físico, cibernético o a través de terceras personas.	Establishes or attempts to establish contact with the victim, by physical, cybernetic, or through third parties.	Screenshots of messages, emails, call logs, social media interactions; testimony regarding third-party contact.	Directly addresses the digital and proxy-based nature of the modern harassment campaign, linking technological acts to the criminal statute.
193 bis.3	Jaquee, interfiera, intercepte o controle un dispositivo o datos personales de	Hacks, interferes with, intercepts, or controls a device or personal data of the person.	Forensic analysis of devices, IP logs showing unauthorized access, expert testimony on	Criminalizes the core technological method of the perpetrators, creating a nexus with

	la persona.		data breaches, evidence of stolen information being used.	data protection laws and justifying international cybercrime investigation.
193 ter.1	Cuando la víctima... se encuentre en una situación de vulnerabilidad..	When the victim... is in a situation of vulnerability...	Proof of irregular/expired immigration status (expired DIMEX, visa overstay), evidence of social or economic isolation.	Legally frames the victim's precarious migratory status not as a disqualifier for justice, but as an aggravating factor that makes the crime <i>more</i> severe.
193 ter.7	Cuando la persona autora se aproveche del ejercicio de su profesión o de la función que desempeña.	When the perpetrator takes advantage of the exercise of their profession or the function they perform.	Evidence of a perpetrator's official position (e.g., police officer, government clerk) and proof of access to restricted databases or use of official authority.	Provides the legal basis for prosecuting official complicity, transforming the case into one involving abuse of public trust and triggering anti-corruption investigations.
193 ter.8	Cuando resulte un daño en la salud física o mental de la víctima.	When damage to the victim's physical or mental health results.	Medical records, psychological evaluations diagnosing conditions like	Quantifies the intangible harm of the harassment, allowing the court to

			PTSD, anxiety, or depression linked to the harassment.	consider the full psychological impact and justifying higher penalties.
193 ter.14	Cuando la persona autora haya cometido el hecho como un acto de venganza, represalia o cobro de deudas en crímenes organizados...	When the perpetrator has committed the act as an act of revenge, retaliation, or debt collection in organized crimes...	Intelligence reports, financial transaction analysis, witness testimony linking perpetrators to known criminal groups, evidence of a motive related to prior criminal activity.	Elevates the crime from a personal dispute to an act of organized crime, triggering investigation by specialized units, justifying enhanced surveillance, and providing a strong basis for international cooperation under the Palermo Convention.

Part V: Synthesis, Insights, and Strategic Recommendations

This final section synthesizes the comprehensive analysis of Costa Rica's legal frameworks and their application to the hypothetical case. It will highlight the critical intersections between the various statutes, identify potential gaps or challenges in their implementation, and conclude with a set of strategic recommendations for both the legal handling of such a

case and for broader policy advancement.

Section 5.1: Critical Intersections and Potential Legal Lacunae

Synthesis of Strengths

The analysis reveals a Costa Rican legal framework that is remarkably progressive and well-suited to confront complex, modern, hybrid threats. The system's strength lies not in any single law, but in the powerful and synergistic convergence of multiple legal regimes. The new **Ley contra el Acoso Predatorio (Law N° 10.487)** acts as a powerful legislative nexus, a central hub that connects previously disparate legal domains.

This law's explicit criminalization of cyber-stalking and data interception creates a direct bridge to the robust protections of the data privacy law, **Law No. 8968**. Its inclusion of an aggravating circumstance for harassment linked to organized crime provides a clear pathway to engage the specialized tools and international cooperation mechanisms established under the **Palermo Convention** and the **Law Against Organized Crime (No. 8754)**. The potential for official complicity is directly addressed by the comprehensive **Anti-Corruption Law (No. 8422)** and the groundbreaking **2024 Whistleblower Protection Law**. Finally, the entire protective structure rests on a constitutional foundation that guarantees access to justice for all persons, irrespective of their migratory status, with procedural mechanisms like the provisional stay permit under **Article 72 of the Migration Law** designed to make that right a reality. This interwoven legal fabric demonstrates a sophisticated legislative response to the reality that modern criminals operate across legal and national boundaries, and that an effective response must do the same.

Potential Gaps and Challenges

Despite these significant strengths, the path to justice is fraught with potential challenges and gaps between law and practice.

- **The Implementation Gap:** The most significant challenge is not the text of the laws, but their practical implementation. The effectiveness of Law N° 10.487 will depend heavily on the training and capacity of front-line police officers, prosecutors, and judges. There is a

risk that without specialized training, authorities may fail to recognize the severity of a complaint, especially when it involves complex digital evidence and a victim with an irregular migratory status.⁷ The deep-seated, de facto fear of deportation among migrant communities may continue to override the de jure right to access justice, as victims may not trust that a police officer will know about or correctly apply the protections available to them.³⁷

- **Evidentiary Hurdles:** Proving the aggravating circumstance of a link to "organized crime" (Article 193 ter.14) presents a high evidentiary bar. Transnational criminal organizations are, by their nature, secretive and adept at obscuring their involvement. A prosecutor may struggle to gather sufficient evidence—such as financial records or insider testimony—to formally prove this link in court, even if intelligence strongly suggests it. This could result in the perpetrators being convicted of the base offense of predatory harassment but not the aggravated, organized-crime version, which would not reflect the true gravity of their actions.
- **Resource Constraints and International Reliance:** Complex international investigations involving cyber forensics, mutual legal assistance requests, and extradition proceedings are extremely resource-intensive. While Costa Rica has the legal framework for such cooperation, the capacity of the OIJ and the Public Ministry to pursue these lengthy and expensive investigations may be limited by budgetary and personnel constraints.⁴³ Furthermore, the success of any transnational investigation is ultimately dependent on the willingness and ability of foreign states to cooperate. A lack of cooperation from the jurisdiction where the main perpetrators reside could effectively halt the prosecution of the highest-level actors.

Section 5.2: Recommendations for Legal Strategy and Policy Advancement

Based on the analysis, a set of strategic recommendations can be formulated, both for the legal team representing the subject in the hypothetical case and for Costa Rican policymakers seeking to close the gap between legal text and practical justice.

For the Hypothetical Case: A Strategic Legal Approach

1. **Prioritize the Provisional Stay:** The immediate and non-negotiable first step upon filing the criminal complaint must be to petition the judge for an order granting a provisional stay permit under Article 72 of the Migration Law. This action is the key that unlocks all other legal avenues by securing the subject's legal status and safety from deportation,

thereby breaking the perpetrators' primary tool of psychological control.

2. **Adopt a Multi-Pronged Filing Strategy:** To maximize pressure and create a comprehensive legal response, complaints should be filed concurrently across multiple domains. This includes: (a) the primary criminal complaint for aggravated predatory harassment; (b) an administrative complaint with PRODHAB for violations of data protection law; and (c) a formal complaint detailing official complicity with the PEP and the OIJ's Office of Internal Affairs. This approach ensures that the case is being investigated from multiple angles by specialized bodies.
3. **Meticulously Document Every Action:** The legal team must guide the subject in meticulously documenting every instance of harassment, no matter how minor it may seem. This includes logging dates, times, locations, and content of all communications. Equally important is to document every interaction with authorities, including the names of officers, the advice given, and the actions taken (or not taken). This creates an unassailable evidentiary record for both the primary crime and any subsequent claims of official misconduct or illegal retaliation.

For Broader Policy Advancement in Costa Rica

1. **Implement Specialized, Cross-Disciplinary Training:** The Poder Judicial, the Public Ministry, and all law enforcement agencies (particularly the OIJ and Fuerza Pública) require mandatory, specialized training focused on this specific legal nexus. This training should cover the nuances of Law N° 10.487, the procedures for handling digital evidence under the Budapest Convention, the unequivocal rights of migrants to access justice, and the critical importance of the provisional stay mechanism. This would ensure that officials at all levels understand how to correctly identify, investigate, and prosecute these complex cases.
2. **Develop Formal "Safe Reporting" Protocols:** To bridge the trust gap, Costa Rica should develop and institutionalize formal "safe reporting" protocols. These protocols would create a clear, official pathway ensuring that when a person with an irregular migratory status comes forward to report a serious crime like aggravated predatory harassment, their case is automatically channeled toward a judicial review for a provisional stay permit, not toward an immediate immigration enforcement action. This would formalize the prioritization of justice and victim protection over administrative immigration enforcement.
3. **Launch Targeted Public Awareness Campaigns:** The government, in partnership with civil society organizations and international bodies like the IOM and UNHCR, should launch public information campaigns specifically targeting migrant communities.⁷ These campaigns, conducted in multiple languages and through trusted community channels, should clearly and simply explain the protections offered by the new Predatory Harassment Law and the unequivocal right of all persons, regardless of status, to access

justice and seek protection without fear of deportation. Highlighting the existence of the provisional stay mechanism would be a critical component of rebuilding trust and empowering victims to come forward.

Table 2: Legal Status and Consequences for Foreign Nationals in Costa Rica

Status	Governing Regulation/Law	Legal Consequences	Associated Vulnerabilities
Tourist (Valid)	Ley General de Migración y Extranjería (No. 8764) ³⁶	Permitted stay for up to 90 or 180 days depending on nationality. Must show proof of onward travel.	Limited; cannot legally work. Obligation to exit the country before visa expires ("visa run"). ³⁴
Tourist (Expired / "Irregular Situation")	Ley General de Migración y Extranjería (No. 8764), Art. 33 ³⁶	Subject to a fine of \$100 per month of overstay. If fine is unpaid, subject to a re-entry ban for a period 3x the length of the overstay.	High; constant fear of detection by authorities, risk of detention and deportation. Susceptibility to blackmail and exploitation.
Temporary Resident (Valid DIMEX)	Ley General de Migración y Extranjería (No. 8764); Reglamento de Extranjería ³⁵	Legal right to reside and, depending on category, work in Costa Rica. Must maintain conditions of residency (e.g., CCSS enrollment).	Low; full access to legal rights and social services.
Temporary	Reglamento de	Can renew the	Moderate; risk of

Resident (DIMEX Expired < 3 Months)	Extranjería ³⁵	DIMEX but must pay a fine for each month of delay (approx. \$3/month). May require a justification letter.	finances and administrative hurdles. Status is precarious but generally salvageable through renewal process.
Temporary Resident (DIMEX Expired > 3 Months)	Reglamento de Extranjería, Art. 216 ³⁵	Migratory category is canceled. The individual loses their legal status and must initiate a completely new application for residency from scratch.	Extreme; individual is effectively undocumented. Loses all rights associated with residency and is in an "irregular situation," subject to fines and deportation.

Table 3: Reporting Mechanisms for Corruption and Official Misconduct in Costa Rica

Oversight Body	Governing Mandate / Law	Jurisdiction	Reporting Procedure	Potential Outcome
Procuraduría de la Ética Pública (PEP)	Ley contra la Corrupción y el Enriquecimiento Ilícito (No. 8422) ¹⁹	Investigates administrative complaints of ethical violations, conflicts of interest, and acts of corruption by	Electronic (online form), written (in-person, fax, mail), or verbal (in-person). ²⁴ Confidentiality is guaranteed for good-faith	Administrative sanctions, formal recommendation for dismissal, criminal complaint filed with the Public

		any public servant.	complainants.	Ministry.
OIJ - Oficina de Asuntos Internos	Ley Orgánica del Organismo de Investigación Judicial (No. 5524) ⁴⁶	Investigates disciplinary and criminal misconduct specifically by personnel of the Organismo de Investigación Judicial (OIJ).	Online form on OIJ website, telephone (2295-3235), email, or in-person at OIJ headquarters. ² ⁵	Disciplinary sanctions (written warning, suspension, dismissal), criminal prosecution if the act constitutes a crime.
Contraloría General de la República (CGR)	Ley General de Control Interno (No. 8292) ⁴⁸	Primary oversight body for the correct use, management, and administration of public funds and resources.	Formal complaints regarding financial irregularities and misuse of public assets. ²⁴	Audits, financial recovery orders, administrative sanctions, reports to the Public Ministry for criminal investigation.
Ministerio Público (Fiscalía)	Código Procesal Penal	Investigates and prosecutes all public crimes, including criminal acts of corruption by officials (e.g., bribery, embezzlement, abuse of authority).	Direct criminal complaint (denuncia) filed at any office of the Public Ministry.	Formal criminal investigation, indictment, and prosecution in criminal court, leading to potential prison sentences and fines.
Fuerza Pública -	Internal	Receives and processes	Telephone (9-1-1), other	Internal disciplinary

Contraloría de Servicios	regulations	citizen complaints against officers of the Fuerza Pública (national police force), often routed via the 9-1-1 system. ⁴⁹	administrative channels.	investigation, administrative sanctions. Often focuses on service quality issues (e.g., police did not arrive) but can escalate corruption claims.
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Obras citadas

1. Ley no. 10487 Ley contra el acoso predatorio, fecha de acceso: agosto 31, 2025, https://sidoc.inamu.go.cr/cgi-bin/koha/opac-detail.pl?biblionumber=715487&shelfbrowse_itemnumber=740019
2. Ley no. 10487 Ley contra el acoso predatorio (Record no. 715487) - Centro de Documentación Luisa González Gutiérrez, fecha de acceso: agosto 31, 2025, <https://sidoc.inamu.go.cr/cgi-bin/koha/opac-MARCdetail.pl?biblionumber=715487>
3. Costa Rica ya cuenta con ley contra el acoso predatorio - CR Hoy, fecha de acceso: agosto 31, 2025, <https://crhoy.com/costa-rica-ya-cuenta-con-ley-contra-el-acoso-predatorio/>
4. Ley contra el acoso predatorio - San José - Sistema Costarricense de Información Jurídica, fecha de acceso: agosto 31, 2025, https://pgrweb.go.cr/scij/Busqueda/Normativa/Normas/nrm_texto_completo.aspx?param1=NRTC&nValor1=1&nValor2=102137&nValor3=141084&strTipM=TC
5. Costa Rica - Ley núm. 10478, de 16 de mayo de 2024 ... - NATLEX, fecha de acceso: agosto 31, 2025, https://natlex.ilo.org/dyn/natlex2/r/natlex/fe/details?p3_isn=117608
6. LEY N° 10487 LA ASAMBLEA LEGISLATIVA DE LA ... - NATLEX, fecha de acceso: agosto 31, 2025, <https://natlex.ilo.org/dyn/natlex2/natlex2/files/download/117608/L%2010487%20CRL.pdf>
7. New law in Costa Rica taps into Canadian expertise to tackle the issue of stalking, fecha de acceso: agosto 31, 2025, <https://www.international.gc.ca/world-monde/stories-histoires/2025/2025-01-10-costa-rica.aspx?lang=eng>
8. Leyes de Impacto: Acoso Predatorio - YouTube, fecha de acceso: agosto 31, 2025, <https://www.youtube.com/watch?v=7tb0TVwBFSE>
9. Portada Gaceta - Imprenta Nacional de Costa Rica, fecha de acceso: agosto 31, 2025, <https://www.imprentanacional.go.cr/gaceta/?date=11/06/2024>
10. Acoso predatorio será penado - YouTube, fecha de acceso: agosto 31, 2025,

- <https://www.youtube.com/watch?v=afvnuBKeUJk>
11. Law No. 8968 Costa Rica - Clym, fecha de acceso: agosto 31, 2025,
<https://www.clym.io/regulations/law-no-8968-costa-rica>
 12. Ley de Protección de la Persona frente al tratamiento de sus datos personales - Sistema Costarricense de Información Jurídica, fecha de acceso: agosto 31, 2025,
https://pgrweb.go.cr/scij/Busqueda/Normativa/Normas/nrm_texto_completo.aspx?param1=NRTC&nValor1=1&nValor2=70975&nValor3=85989&strTipM=TC
 13. Ley de Protección de Datos Personales - YouTube, fecha de acceso: agosto 31, 2025, <https://www.youtube.com/watch?v=wsulixNh3x8>
 14. Realidad sobre la Privacidad de los Datos Personales en Costa Rica - SciELO, fecha de acceso: agosto 31, 2025,
https://www.scielo.sa.cr/scielo.php?script=sci_arttext&pid=S1659-41422019000200068
 15. Costa Rica's Data Protection Law Explained: A Quick Guide to Law No. 8968 - YouTube, fecha de acceso: agosto 31, 2025,
<https://www.youtube.com/watch?v=xCek3DNcQzs>
 16. Costa Rica | Jurisdictions - DataGuidance, fecha de acceso: agosto 31, 2025,
<https://www.dataguidance.com/jurisdiction/costa-rica>
 17. Protección de Datos Personales en Costa Rica - Abogados en Derecho Digital, fecha de acceso: agosto 31, 2025,
<https://golegalcr.com/proteccion-de-datos-personales-en-costa-rica/>
 18. Data protection laws in Costa Rica - Data Protection Laws of the World, fecha de acceso: agosto 31, 2025,
<https://www.dlapiperdataprotection.com/index.html?t=law&c=CR>
 19. Costa Rica | Lex Mundi, fecha de acceso: agosto 31, 2025,
<https://www.lexmundi.com/guides/anti-corruption-compliance-guide/jurisdictions/latin-america/costa-rica/>
 20. Ley contra la Corrupción y el Enriquecimiento Ilícito en la Función Pública - Sistema Costarricense de Información Jurídica, fecha de acceso: agosto 31, 2025,
https://pgrweb.go.cr/scij/Busqueda/Normativa/Normas/nrm_texto_completo.aspx?nValor1=1&nValor2=53738
 21. Investment Climate Statements: Custom Report Excerpts - State Department, fecha de acceso: agosto 31, 2025,
<https://www.state.gov/report/custom/7f828bbebc>
 22. www.lexmundi.com, fecha de acceso: agosto 31, 2025,
<https://www.lexmundi.com/guides/anti-corruption-compliance-guide/jurisdictions/latin-america/costa-rica/#:~:text=by%20the%20legislation%3F-.Yes%2C%20bribe%20payments%20to%20foreign%20government%20officials%20are%20prohibited%20under,prohibited%20by%20Costa%20Rican%20legislation.>
 23. Costa Rica Passes First “Whistleblower Law” to Protect Complainants and Witnesses of Possible Acts of Corruption | Littler, fecha de acceso: agosto 31, 2025,
<https://www.littler.com/news-analysis/asap/costa-rica-passes-first-whistleblower-law-protect-complainants-and-witnesses>
 24. Denuncias - Procuraduría General de la República, fecha de acceso: agosto 31,

- 2025,
<https://www.pgr.go.cr/servicios/procuraduria-de-la-etica-publica-pep/denuncias/>
25. Asuntos Internos - Organismo de Investigación Judicial, fecha de acceso: agosto 31, 2025,
<https://sitiooij.poder-judicial.go.cr/index.php/oficinas/direccion-general/asuntos-internos>
26. Caja de Herramientas contra la Corrupción - Organismo de Investigación Judicial (OIJ), fecha de acceso: agosto 31, 2025,
<https://sitiooij.poder-judicial.go.cr/index.php/apertura/participacion/codiseno-politicas/caja-de-herramientas-contra-la-corrupcion>
27. The Rule of Law in Costa Rica - World Justice Project, fecha de acceso: agosto 31, 2025,
<https://worldjusticeproject.org/our-work/research-and-data/rule-of-law/costa-rica-2022>
28. 2104008E Translated from Spanish General Directorate for Foreign ..., fecha de acceso: agosto 31, 2025,
https://www.un.org/en/ga/sixth/76/universal_jurisdiction/costarica_e.pdf
29. Combate contra la ciberdelincuencia se fortalece con convenio internacional, fecha de acceso: agosto 31, 2025,
<https://pj.poder-judicial.go.cr/index.php/component/content/article/196-combate-contra-la-ciberdelincuencia-se-fortalece-con-convenio-internacional?catid=8&Itemid=409>
30. Actualización sobre Desarrollos Clave Delegación de Costa Rica, fecha de acceso: agosto 31, 2025,
<https://rm.coe.int/update-from-costa-rica-on-key-developments/16809633b2>
31. Treaty Document 98-17 - EXTRADITION TREATY WITH COSTA RICA | Congress.gov, fecha de acceso: agosto 31, 2025,
<https://www.congress.gov/treaty-document/98th-congress/17>
32. Costa Rican Treaty - Travel - U.S. Department of State, fecha de acceso: agosto 31, 2025,
<https://travel.state.gov/content/travel/en/legal/travel-legal-considerations/intl-treaties/Bilateral-Consular-Conventions/Costa-Rican-Treaty.html>
33. Costa Rica - Interpol, fecha de acceso: agosto 31, 2025,
<https://www.interpol.int/Who-we-are/Member-countries/Americas/COSTA-RICA>
34. Nicaragua Border Run: How to Renew Your Costa Rica Tourist Visa by Yourself, fecha de acceso: agosto 31, 2025,
<https://www.specialplacesofcostarica.com/blog/renewing-a-costa-rica-tourist-visa/>
35. DIMEX - Dirección General de Migración y Extranjería - Costa Rica, fecha de acceso: agosto 31, 2025, <https://migracion.go.cr/dimex/>
36. REINSTATED IMMIGRATION'S PENALTY FEE FOR FOREIGNERS WITH EXPIRED VISA AND RESIDENTS WITH EXPIRED RESIDENCY CARDS - CORDERO & CORDERO | ABOGADOS, fecha de acceso: agosto 31, 2025,
<https://corderoabogados.com/reinstated-immigrations-penalty-fee-for-foreigners-with-expired-visa-and-residents-with-expired-residency-cards/>

37. 11. El acceso a la justicia de las personas migrantes y refugiadas - Conamaj, fecha de acceso: agosto 31, 2025,
<https://conamaj.poder-judicial.go.cr/images/pdf/057.pdf>
38. Subcomisión de Acceso a la Justicia para Personas Migrantes y Refugiadas del Poder Judicial, fecha de acceso: agosto 31, 2025,
https://www.ilo.org/sites/default/files/wcmsp5/groups/public/@americas/@ro-lima/@sro-san_jose/documents/publication/wcms_355253.pdf
39. Política institucional para el acceso a la justicia por parte de la población migrante y refugiada (PIMR) - ACNUR, fecha de acceso: agosto 31, 2025,
<https://www.acnur.org/fileadmin/Documentos/BDL/2014/9978.pdf>
40. Costa Rica: Freedom in the World 2023 Country Report, fecha de acceso: agosto 31, 2025, <https://freedomhouse.org/country/costa-rica/freedom-world/2023>
41. Área de Análisis Jurídico, fecha de acceso: agosto 31, 2025,
<https://direccionjuridica.poder-judicial.go.cr/index.php/component/phocadownload/category/68-hostigamiento-sexual?download=232:dj-aj-c-399-2021>
42. Primer informe de actualización de Costa Rica sobre las recomendaciones del primer ciclo de examen de la Convención de las Nac, fecha de acceso: agosto 31, 2025,
https://www.unodc.org/documents/treaties/UNCAC/COSP/session10/submissions/CAC-COSP-2023-8/Costa_Rica_-_Chapters_III_and_IV.pdf
43. EXECUTIVE SUMMARY COSTA RICA JUSTICE SECTOR ASSESSMENT CENTER FOR THE ADMINISTRATION OF JUSTICE FLORIDA INTERNATIONAL UNIVERSITY, fecha de acceso: agosto 31, 2025,
<https://caj.fiu.edu/publications/executive-summaries/costa-rica-justice-sector-assessment.pdf>
44. Entry Requirements - Visit Costa Rica - Guidelines, fecha de acceso: agosto 31, 2025, <https://www.visitcostarica.com/planning-your-trip/entry-requirements>
45. REGLAMENTO DE EXTRANJERÍA - Tribunal Supremo de Elecciones, fecha de acceso: agosto 31, 2025,
<https://www.tse.go.cr/pdf/normativa/reglamentodeextranjeria.pdf>
46. Ley Orgánica del Organismo de Investigación Judicial (OIJ) - Pgrweb.go.cr, fecha de acceso: agosto 31, 2025,
https://pgrweb.go.cr/scij/Busqueda/Normativa/Normas/nrm_texto_completo.aspx?param1=NRTC&nValor1=1&nValor2=16037&nValor3=17167&m2=3&strTipM=TC&IR_esultado=29&strSim=simp
47. “Guía General del Procedimiento Disciplinario Administrativo en el Poder Judicial” I., fecha de acceso: agosto 31, 2025,
<https://unmejorpi.poder-judicial.go.cr/images/Documentos/Guia-General-del-Procedimiento-Disciplinario-Administrativo-en-el-Poder-Judicial.pdf>
48. Ley General de Control Interno, fecha de acceso: agosto 31, 2025,
http://www.oas.org/juridico/spanish/cr_res8.htm
49. Quejas contra la Fuerza Pública tramitadas por la Contraloría de Servicios, AÑO 2020, fecha de acceso: agosto 31, 2025,
https://www.seguridadpublica.go.cr/transparencia/participacionciudadana/contral_serv/gest_contr/Inf_gestiones_tramitadas_2020.pdf